



Bill Number: S.B. 1214

Shamp Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes provisions prohibiting the use of cells or tissues derived from an aborted fetus or embryo and eliminates related felony penalties.
2. Removes the limitation restricting stem cell or regenerative therapies to orthopedics, wound care or pain management and adds requirements relating to continuing education training, biologic material sourcing and informed consent.
3. Replaces product-specific biologic material validation requirements with manufacturer-supplied validation and documentation requirements.
4. Establishes requirements relating to provider record maintenance and adverse event reporting.
5. Expands stem cell and regenerative therapy requirements to apply to any licensed health professional with appropriate scope of practice.
6. Replaces use of the term *birth tissue therapy* with *regenerative therapy*.
7. Makes technical and conforming changes.

SHAMP FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1214
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 32, chapter ~~[13]~~ [32], Arizona Revised Statutes,
3 is amended by adding article ~~[7]~~ [2.1], to read:

4 ARTICLE ~~[7]~~ [2.1]. STEM CELL AND ~~[BIRTH TISSUE]~~[REGENERATIVE] THERAPY

5 ~~[32-1492.]~~ [32-3235.] Definitions

6 [IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "PROVIDER" MEANS ANY HEALTH PROFESSIONAL WHO IS LICENSED
8 PURSUANT TO THIS TITLE AND WHOSE SCOPE OF PRACTICE INCLUDES STEM CELL OR
9 REGENERATIVE THERAPY.

10 2. "STEM CELL OR REGENERATIVE THERAPY" MEANS A TREATMENT THAT
11 INVOLVES THE USE OF AFTERBIRTH, INCLUDING PLACENTAL PERINATAL CELLS OR
12 OTHER CELLS OR TISSUES OR AMNIOTIC FLUID, THAT MAY BE AUTOLOGOUS OR
13 ALLOGENEIC OR CULTURE EXPANDED AND THAT COMPLIES WITH THE REQUIREMENTS
14 PRESCRIBED IN THIS ARTICLE.]

15 ~~[32-1492.]~~ [32-3236.] Stem cell therapy; regenerative
16 therapy; ethical requirements; informed consent;
17 records; advertising; unprofessional conduct;
18 civil action

19 ~~[A. A PHYSICIAN MAY NOT PERFORM OR PARTICIPATE IN ANY STEM CELL~~
20 ~~THERAPY OR BIRTH TISSUE THERAPY INVOLVING CELLS OR TISSUES DERIVED FROM AN~~
21 ~~ABORTED FETUS OR EMBRYO.~~

22 B.] [A.] A ~~[PHYSICIAN]~~ [PROVIDER] MAY PERFORM STEM CELL [OR
23 REGENERATIVE] THERAPY [OR BIRTH TISSUE THERAPY] THAT IS NOT APPROVED BY
24 THE UNITED STATES FOOD AND DRUG ADMINISTRATION IF ALL OF THE FOLLOWING
25 APPLY:

1 1. THE STEM CELL ~~[OR REGENERATIVE]~~ THERAPY ~~[OR BIRTH TISSUE~~
2 ~~THERAPY]~~ IS WITHIN THE ~~[PHYSICIAN'S]~~ [PROVIDER'S] LAWFUL SCOPE OF
3 PRACTICE.

4 ~~[2. THE STEM CELL THERAPY OR BIRTH TISSUE THERAPY IS RELATED TO~~
5 ~~ORTHOPEDICS, WOUND CARE OR PAIN MANAGEMENT.]~~

6 ~~[2. THE PROVIDER HAS COMPLETED A NATIONALLY RECOGNIZED, ACCREDITED~~
7 ~~OR BOARD-RECOGNIZED CONTINUING EDUCATION TRAINING IN STEM CELL OR~~
8 ~~REGENERATIVE THERAPY.]~~

9 3. THE STEM CELL OR REGENERATIVE THERAPY COMPLIES WITH THE SOURCING
10 REQUIREMENTS PRESCRIBED IN SUBSECTION B OF THIS SECTION.

11 4. THE PROVIDER OBTAINS WRITTEN INFORMED CONSENT PURSUANT TO
12 SUBSECTION H OF THIS SECTION BEFORE PERFORMING ANY STEM CELL OR
13 REGENERATIVE THERAPY.

14 B. ANY CELLS, EXOSOMES OR BIOLOGIC MATERIALS USED FOR THERAPEUTIC
15 PURPOSES UNDER THIS SECTION MUST BE SOURCED EXCLUSIVELY FROM A FACILITY
16 THAT IS REGISTERED, CERTIFIED OR ACCREDITED AND INSPECTED IN COMPLIANCE
17 WITH SUBSECTION C OF THIS SECTION AND THAT OPERATES IN COMPLIANCE WITH
18 CURRENT GOOD MANUFACTURING PRACTICE STANDARDS.]

19 ~~[3.]~~[C. TO ENSURE THAT THE RETRIEVAL, MANUFACTURE, STORAGE AND USE
20 OF STEM CELL AND REGENERATIVE MEDICINES USED FOR THERAPIES CONDUCTED
21 PURSUANT TO THIS SECTION MEET THE HIGHEST STANDARDS.] THE STEM CELLS OR
22 [BIRTH TISSUE] [REGENERATIVE MEDICINES] BEING USED [MEETS] [MUST MEET] THE
23 FOLLOWING REQUIREMENTS:

24 ~~[(a) IS]~~ [1. BE] RETRIEVED, [PROCESSED] [MANUFACTURED] AND STORED
25 IN A FACILITY THAT IS EITHER REGISTERED[.] [AND] REGULATED [AND INSPECTED]
26 BY THE UNITED STATES FOOD AND DRUG ADMINISTRATION OR CERTIFIED OR
27 ACCREDITED BY ANY OF THE FOLLOWING:

28 ~~[(i)]~~ [(a)] THE NATIONAL MARROW DONOR PROGRAM.

29 ~~[(ii)]~~ [(b)] THE WORLD MARROW DONOR ASSOCIATION.

30 ~~[(iii)]~~ [(c)] THE ASSOCIATION FOR THE ADVANCEMENT OF BLOOD AND
31 BIOTHERAPIES.

32 ~~[(iv)]~~ [(d)] THE AMERICAN ASSOCIATION OF TISSUE BANKS.

33 ~~[(b) IF STEM CELLS, CONTAIN VIABLE OR LIVE CELLS ON POST-THAW~~
34 ~~ANALYSIS AND ARE ACCOMPANIED BY A POST-THAW VIABILITY ANALYSIS REPORT~~
35 ~~PROVIDED TO THE PHYSICIAN BEFORE USE WITH A PATIENT.]~~

36 ~~[(c) IF BIRTH TISSUE, CONTAINS NATURALLY OCCURRING GROWTH FACTORS~~
37 ~~AND EXTRACELLULAR MATRIX ELEMENTS THAT MEET PREDETERMINED RELEASE~~
38 ~~CRITERIA. THE BIRTH TISSUE MUST BE ACCOMPANIED BY A CERTIFICATE OF~~
39 ~~CONFORMANCE OR A CERTIFICATE OF ANALYSIS INDICATING THAT THE BIRTH TISSUE,~~
40 ~~AT A MINIMUM, MEETS THESE CRITERIA AND HAS TESTED NEGATIVE FOR~~
41 ~~COMMUNICABLE DISEASES REQUIRED BY THE UNITED STATES FOOD AND DRUG~~
42 ~~ADMINISTRATION.]~~

43 ~~[(e) THE AMERICAN ACADEMY OF STEM CELL MEDICINE.]~~

44 2. BE SUPPLIED BY THE MANUFACTURER WITH APPROPRIATE VALIDATION OF
45 ISOLATION TECHNIQUES, INCLUDING CELL VIABILITY AND SURFACE MARKER REPORTS

1 FOR CELLULAR PRODUCTS, A VISCOSITY REPORT FOR WHARTON'S JELLY AND EXOSOME
2 COUNTS FOR EXOSOME-BASED REGENERATIVE PRODUCTS. LOT-SPECIFIC STERILITY
3 REPORTS AND CERTIFICATES OF ANALYSIS MUST BE PROVIDED WITH EACH PRODUCT
4 BEFORE USE WITH THE PROVIDER'S PATIENT.]
5 [C.] [D.] [AN INDIVIDUAL] [A PROVIDER WHO PERFORMS STEM CELL OR
6 REGENERATIVE THERAPY] MAY NOT OBTAIN STEM CELLS OR [BIRTH-TISSUE]
7 [REGENERATIVE MEDICINES] FROM ANY FACILITY THAT DOES NOT HAVE A VALID
8 CERTIFICATION OR ACCREDITATION AS REQUIRED BY SUBSECTION [B, PARAGRAPH 3]
9 [C] OF THIS SECTION. ANY CONTRACT OR AGREEMENT BY WHICH A [PHYSICIAN]
10 [PROVIDER] OBTAINS STEM CELLS OR [BIRTH-TISSUE] [REGENERATIVE MEDICINES]
11 FOR THERAPIES FROM A CERTIFIED OR ACCREDITED [MANUFACTURING] FACILITY MUST
12 INCLUDE THE FOLLOWING INFORMATION:
13 1. THE NAME AND ADDRESS OF THE [MANUFACTURING] FACILITY.
14 2. THE [MANUFACTURING] FACILITY'S CERTIFYING OR ACCREDITING
15 ORGANIZATION.
16 [3. PROOF OF CERTIFICATION OR ACCREDITATION.
17 4. PROOF OF SITE INSPECTION BY THE UNITED STATES FOOD AND DRUG
18 ADMINISTRATION OR THE CERTIFYING OR ACCREDITING ORGANIZATION NAMED IN
19 PARAGRAPH 2 OF THIS SUBSECTION.]
20 [3.] [5.] THE TYPE AND SCOPE OF CERTIFICATION OR ACCREDITATION.
21 [4.] [6.] THE EFFECTIVE DATE AND EXPIRATION DATE OF THE
22 CERTIFICATION OR ACCREDITATION.
23 [5.] [7.] ANY LIMITS OR CONDITIONS IMPOSED BY THE CERTIFYING OR
24 ACCREDITING ORGANIZATION ON THE [MANUFACTURING] FACILITY.
25 [6.] [8.] A STATEMENT INDICATING, WITH SPECIFICITY, HOW, WHEN AND
26 WHERE THE STEM CELLS [OR BIRTH-TISSUE WAS] [WERE] OBTAINED, SUCH AS ADULT
27 STEM CELLS, UMBILICAL CORD BLOOD OR AMNIOTIC FLUID.
28 [D.] [E.] ANY [MANUFACTURING] FACILITY THAT PROVIDES STEM CELLS OR
29 [BIRTH-TISSUE] [REGENERATIVE MEDICINE] TO A [PHYSICIAN] [PROVIDER] FOR
30 STEM CELL [OR REGENERATIVE] THERAPY [OR BIRTH-TISSUE THERAPY] MUST NOTIFY
31 THE [PHYSICIAN] [PROVIDER] TO WHOM THE [MANUFACTURING] FACILITY IS
32 PROVIDING STEM CELLS OR [BIRTH-TISSUE] [REGENERATIVE MEDICINE] WITHIN
33 THIRTY DAYS AFTER ANY CHANGE IN CERTIFICATION OR ACCREDITATION STATUS,
34 INCLUDING SUSPENSION, REVOCATION, RENEWAL OR EXPIRATION.
35 [F.] [F.] A [PHYSICIAN] [PROVIDER] SHALL ENSURE THAT ALL PRODUCTS
36 USED IN STEM CELL [OR REGENERATIVE] THERAPY [OR BIRTH-TISSUE THERAPY] ARE
37 OBTAINED FROM A [MANUFACTURING] FACILITY THAT COMPLIES WITH CURRENT GOOD
38 MANUFACTURING PRACTICES IN ACCORDANCE WITH THE FEDERAL FOOD, DRUG, AND
39 COSMETIC ACT (52 STAT. 1040; 21 UNITED STATES CODE SECTION 301) AND 21
40 CODE OF FEDERAL REGULATIONS PART 1271.
41 [F.] [G.] ANY [PHYSICIAN] [PROVIDER] ADVERTISING STEM CELL
42 [THERAPIES OR BIRTH-TISSUE THERAPIES] [OR REGENERATIVE THERAPY] MUST
43 INCLUDE THE FOLLOWING DISCLOSURE IN ANY FORM OF ADVERTISEMENT, IN A TYPE
44 SIZE OF AT LEAST THE LARGEST TYPE USED ELSEWHERE IN THE ADVERTISEMENT:

1 THIS NOTICE IS REQUIRED BY ARIZONA LAW. THIS ~~[PHYSICIAN]~~
2 ~~[PROVIDER]~~ OFFERS ONE OR MORE STEM CELL ~~[OR REGENERATIVE]~~
3 THERAPIES ~~[OR BIRTH TISSUE THERAPIES]~~ THAT ARE NOT APPROVED BY
4 THE UNITED STATES FOOD AND DRUG ADMINISTRATION. YOU ARE
5 ENCOURAGED TO CONSULT WITH YOUR PRIMARY CARE PROVIDER BEFORE
6 UNDERGOING ANY STEM CELL ~~[OR REGENERATIVE]~~ THERAPY ~~[OR BIRTH~~
7 ~~TISSUE THERAPY]~~.
8 ~~[G.]~~ [H.] BEFORE PERFORMING ANY STEM CELL ~~[OR REGENERATIVE]~~
9 THERAPY ~~[OR BIRTH TISSUE THERAPY]~~, THE ~~[PHYSICIAN]~~ ~~[PROVIDER]~~
10 SHALL OBTAIN A SIGNED INFORMED CONSENT FORM FROM THE PATIENT
11 OR, IF THE PATIENT IS NOT LEGALLY COMPETENT, FROM THE
12 PATIENT'S AUTHORIZED REPRESENTATIVE THAT CLEARLY STATES:
13 1. THE NATURE AND CHARACTER OF THE PROPOSED TREATMENT.
14 2. THAT THE TREATMENT HAS NOT BEEN APPROVED BY THE UNITED STATES
15 FOOD AND DRUG ADMINISTRATION.
16 3. THE ANTICIPATED RESULTS OF THE PROPOSED TREATMENT.
17 4. THE RECOGNIZED SERIOUS POSSIBLE RISKS AND COMPLICATIONS OF THE
18 TREATMENT, THE ANTICIPATED BENEFITS OF THE TREATMENT AND ANY ALTERNATIVES
19 TO THE TREATMENT, INCLUDING THE OPTION OF NOT UNDERGOING TREATMENT.
20 5. THAT THE PATIENT IS ENCOURAGED TO CONSULT WITH THE PATIENT'S
21 PRIMARY CARE PROVIDER BEFORE PROCEEDING WITH THE TREATMENT.
22 ~~[H. THIS SECTION DOES NOT APPLY TO A PHYSICIAN WHO EITHER:~~
23 ~~1. HAS OBTAINED APPROVAL FOR AN INVESTIGATIONAL NEW DRUG OR DEVICE~~
24 ~~FROM THE UNITED STATES FOOD AND DRUG ADMINISTRATION FOR THE USE OF HUMAN~~
25 ~~CELLS, TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS.~~
26 ~~2. PERFORMS STEM CELL THERAPY OR BIRTH TISSUE THERAPY TREATMENTS~~
27 ~~UNDER AN EMPLOYMENT OR OTHER CONTRACT ON BEHALF OF AN INSTITUTION THAT IS~~
28 ~~CERTIFIED OR ACCREDITED BY ONE OF THE FOLLOWING:~~
29 ~~(a) THE FOUNDATION FOR THE ACCREDITATION OF CELLULAR THERAPY.~~
30 ~~(b) THE BLOOD AND MARROW TRANSPLANT CLINICAL TRIALS NETWORK.~~
31 ~~(c) THE ASSOCIATION FOR THE ADVANCEMENT OF BLOOD AND BIOTHERAPIES.]~~
32 [I. A PROVIDER ADMINISTERING A STEM CELL OR REGENERATIVE THERAPY
33 SHALL MAINTAIN ACCURATE TREATMENT RECORDS, DOCUMENT CLINICAL OUTCOMES AND
34 ANY ADVERSE EVENTS AND REPORT AS FOLLOWS:
35 1. THE PROVIDER SHALL REPORT ANY SERIOUS ADVERSE EVENT THAT IS
36 REASONABLY SUSPECTED TO BE LINKED TO THE THERAPY TO THE PROVIDER'S
37 RESPECTIVE HEALTH PROFESSION REGULATORY BOARD WITHIN FIFTEEN CALENDAR DAYS
38 AFTER THE PROVIDER BECOMES AWARE OF THE SERIOUS ADVERSE EVENT.
39 2. THE PROVIDER SHALL REPORT ANY SERIOUS ADVERSE EVENT TO THE
40 SUPPLIER OF THE STEM CELL OR REGENERATIVE THERAPY.
41 J. A PROVIDER MAY VOLUNTARILY SUBMIT DE-IDENTIFIED PATIENT DATA TO
42 PROFESSIONAL CLINICAL REGISTRIES.
43 K. A PROVIDER WHO:

1 1. VIOLATES THIS SECTION COMMITS AN ACT OF UNPROFESSIONAL CONDUCT
2 PURSUANT TO THE CHAPTER OF THIS TITLE UNDER WHICH THE PROVIDER IS
3 LICENSED.

4 2. ACTS IN GOOD FAITH AND IN COMPLIANCE WITH THIS SECTION IS NOT
5 SUBJECT TO PROFESSIONAL DISCIPLINARY ACTION OR LICENSE REVOCATION SOLELY
6 FOR THE ACT OF ADMINISTERING A STEM CELL OR REGENERATIVE THERAPY. THIS
7 PARAGRAPH DOES NOT APPLY TO CASES INVOLVING GROSS NEGLIGENCE, MEDICAL
8 FRAUD OR INTENTIONAL MISCONDUCT.]

9 ~~[I.] [L.] ANY INDIVIDUAL WHO RECEIVES A STEM CELL [OR~~
10 ~~REGENERATIVE] THERAPY [OR BIRTH TISSUE THERAPY] TREATMENT THAT VIOLATES~~
11 ~~THIS SECTION MAY BRING A CIVIL ACTION TO RECOVER STATUTORY DAMAGES IN AN~~
12 ~~AMOUNT OF \$10,000 PER VIOLATION, PLUS ATTORNEY FEES AND COSTS.~~

13 ~~[J. A PHYSICIAN WHO WILFULLY PERFORMS OR ACTIVELY PARTICIPATES IN~~
14 ~~THE FOLLOWING ACTS IS GUILTY OF A CLASS 5 FELONY AND IS SUBJECT TO~~
15 ~~DISCIPLINARY ACTION UNDER THIS CHAPTER:~~

16 ~~1. TREATMENT OR RESEARCH USING HUMAN CELLS OR TISSUES DERIVED FROM~~
17 ~~A FETUS OR AN EMBRYO AFTER AN ELECTIVE ABORTION.~~

18 ~~2. THE DEVELOPMENT, DEPLOYMENT, SALE, MANUFACTURE OR DISTRIBUTION~~
19 ~~OF COMPUTER PRODUCTS CREATED USING HUMAN CELLS, TISSUES OR CELLULAR OR~~
20 ~~TISSUE-BASED PRODUCTS, INCLUDING SYNTHETIC COGNITION SYSTEMS.~~

21 ~~K. THE BOARD MAY ADOPT RULES NECESSARY TO IMPLEMENT THIS SECTION~~
22 ~~PURSUANT TO TITLE 41, CHAPTER 6.]~~

23 ~~[L. FOR THE PURPOSES OF THIS SECTION:~~

24 ~~1. "BIRTH TISSUE THERAPY":~~

25 ~~(a) MEANS A TREATMENT INVOLVING THE USE OF AFTERBIRTH PLACENTAL~~
26 ~~PERINATAL MATERIAL, INCLUDING AMNIOTIC FLUID, THAT DOES NOT RELY ON~~
27 ~~CELLULAR VIABILITY FOR THE EFFICACY OF THE PRODUCT BUT RELIES ON THE~~
28 ~~PHYSICAL STRUCTURES AND THE SIGNALING FACTOR OF THE PROTEINS AND~~
29 ~~EXTRACELLULAR MATRIX ELEMENTS IT CONTAINS.~~

30 ~~(b) DOES NOT INCLUDE TREATMENT OR RESEARCH USING HUMAN TISSUES OR~~
31 ~~FLUIDS THAT WERE DERIVED FROM A FETUS OR EMBRYO AFTER AN ELECTIVE ABORTION~~
32 ~~OR PREGNANCY OF LESS THAN THIRTY-SIX WEEKS' GESTATION.~~

33 ~~2. "HUMAN CELLS, TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS":~~

34 ~~(a) MEANS ARTICLES CONTAINING OR CONSISTING OF HUMAN CELLS OR~~
35 ~~TISSUES THAT ARE INTENDED FOR IMPLANTATION, TRANSPLANTATION, INFUSION OR~~
36 ~~TRANSFER INTO A HUMAN RECIPIENT.~~

37 ~~(b) DOES NOT INCLUDE:~~

38 ~~(i) VASCULARIZED HUMAN ORGANS FOR TRANSPLANTATION;~~

39 ~~(ii) WHOLE BLOOD OR BLOOD COMPONENTS OR BLOOD DERIVATIVE PRODUCTS;~~

40 ~~(iii) SECRETED OR EXTRACTED HUMAN PRODUCTS, SUCH AS MILK, COLLAGEN~~
41 ~~AND CELL FACTORS, OTHER THAN SEMEN AND AMNIOTIC FLUID.~~

42 ~~(iv) MINIMALLY MANIPULATED BONE MARROW THAT IS FOR HOMOLOGOUS USE~~
43 ~~AND THAT IS NOT COMBINED WITH ANOTHER ARTICLE OTHER THAN WATER,~~
44 ~~CRYSTALLOIDS OR A STERILIZING, PRESERVING OR STORAGE AGENT, IF THE~~

1 ~~ADDITION OF THE AGENT DOES NOT RAISE NEW CLINICAL SAFETY CONCERNS WITH~~
2 ~~RESPECT TO THE BONE MARROW.~~
3 ~~(v) ANCILLARY PRODUCTS USED IN THE MANUFACTURE OF HUMAN CELLS,~~
4 ~~TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS.~~
5 ~~(vi) CELLS, TISSUES AND ORGANS DERIVED FROM ANIMALS OTHER THAN~~
6 ~~HUMANS.~~
7 ~~(vii) IN VITRO DIAGNOSTIC PRODUCTS.~~
8 ~~(viii) BLOOD VESSELS RECOVERED WITH AN ORGAN THAT ARE INTENDED FOR~~
9 ~~USE IN ORGAN TRANSPLANTATION AND LABELED "FOR USE IN ORGAN TRANSPLANTATION~~
10 ~~ONLY".~~
11 ~~3. "MINIMALLY MANIPULATED" MEANS:~~
12 ~~(a) FOR STRUCTURAL TISSUE, PROCESSING THAT DOES NOT ALTER THE~~
13 ~~ORIGINAL RELEVANT CHARACTERISTICS OF THE TISSUE RELATING TO THE TISSUE'S~~
14 ~~UTILITY FOR RECONSTRUCTION, REPAIR OR REPLACEMENT.~~
15 ~~(b) FOR CELLS OR NONSTRUCTURAL TISSUES, PROCESSING THAT DOES NOT~~
16 ~~ALTER THE RELEVANT BIOLOGICAL CHARACTERISTICS OF THE CELLS OR TISSUES.]~~
17 ~~4. "STEM CELL THERAPY":~~
18 ~~(A) MEANS A TREATMENT THAT INVOLVES THE USE OF AFTERBIRTH PLACENTAL~~
19 ~~PERINATAL STEM CELLS OR HUMAN CELLS, TISSUES OR CELLULAR OR TISSUE-BASED~~
20 ~~PRODUCTS AND THAT COMPLIES WITH THE REGULATORY REQUIREMENTS PROVIDED IN~~
21 ~~THIS SECTION.~~
22 ~~(b) DOES NOT INCLUDE TREATMENT OR RESEARCH USING HUMAN CELLS OR~~
23 ~~TISSUES THAT WERE DERIVED FROM A FETUS OR AN EMBRYO AFTER AN ELECTIVE~~
24 ~~ABORTION.]~~
25 ~~<<Sec. 2. Title 32, chapter 17, Arizona Revised Statutes, is~~
26 ~~amended by adding article 5, to read:~~
27 ~~ARTICLE 5. STEM CELL AND BIRTH TISSUE THERAPY~~
28 ~~32-1872. Stem cell therapy; birth tissue therapy; ethical~~
29 ~~requirements; informed consent; advertising;~~
30 ~~violations; classification; rules; definitions~~
31 ~~A. A PHYSICIAN MAY NOT PERFORM OR PARTICIPATE IN ANY STEM CELL~~
32 ~~THERAPY OR BIRTH TISSUE THERAPY INVOLVING CELLS OR TISSUES DERIVED FROM AN~~
33 ~~ABORTED FETUS OR EMBRYO.~~
34 ~~B. A PHYSICIAN MAY PERFORM STEM CELL THERAPY OR BIRTH TISSUE~~
35 ~~THERAPY THAT IS NOT APPROVED BY THE UNITED STATES FOOD AND DRUG~~
36 ~~ADMINISTRATION IF ALL OF THE FOLLOWING APPLY:~~
37 ~~1. THE STEM CELL THERAPY OR BIRTH TISSUE THERAPY IS WITHIN THE~~
38 ~~PHYSICIAN'S LAWFUL SCOPE OF PRACTICE.~~
39 ~~2. THE STEM CELL THERAPY OR BIRTH TISSUE THERAPY IS RELATED TO~~
40 ~~ORTHOPEDICS, WOUND CARE OR PAIN MANAGEMENT.~~
41 ~~3. THE STEM CELLS OR BIRTH TISSUE BEING USED MEETS THE FOLLOWING~~
42 ~~REQUIREMENTS:~~
43 ~~(a) IS RETRIEVED, PROCESSED AND STORED IN A FACILITY THAT IS EITHER~~
44 ~~REGISTERED AND REGULATED BY THE UNITED STATES FOOD AND DRUG ADMINISTRATION~~
45 ~~OR CERTIFIED OR ACCREDITED BY ANY OF THE FOLLOWING:~~

1 ~~(i) THE NATIONAL MARROW DONOR PROGRAM.~~
2 ~~(ii) THE WORLD MARROW DONOR ASSOCIATION.~~
3 ~~(iii) THE ASSOCIATION FOR THE ADVANCEMENT OF BLOOD AND~~
4 ~~BIOETHERAPIES.~~
5 ~~(iv) THE AMERICAN ASSOCIATION OF TISSUE BANKS.~~
6 ~~(b) IF STEM CELLS, CONTAIN VIABLE OR LIVE CELLS ON POST-THAW~~
7 ~~ANALYSIS AND ARE ACCOMPANIED BY A POST-THAW VIABILITY ANALYSIS REPORT~~
8 ~~PROVIDED TO THE PHYSICIAN BEFORE USE WITH A PATIENT.~~
9 ~~(c) IF BIRTH TISSUE, CONTAINS NATURALLY OCCURRING GROWTH FACTORS~~
10 ~~AND EXTRACELLULAR MATRIX ELEMENTS THAT MEET PREDETERMINED RELEASE~~
11 ~~CRITERIA. THE BIRTH TISSUE MUST BE ACCOMPANIED BY A CERTIFICATE OF~~
12 ~~CONFORMANCE OR A CERTIFICATE OF ANALYSIS INDICATING THAT THE BIRTH TISSUE,~~
13 ~~AT A MINIMUM, MEETS THESE CRITERIA AND HAS TESTED NEGATIVE FOR~~
14 ~~COMMUNICABLE DISEASES REQUIRED BY THE UNITED STATES FOOD AND DRUG~~
15 ~~ADMINISTRATION.~~
16 ~~C. AN INDIVIDUAL MAY NOT OBTAIN STEM CELLS OR BIRTH TISSUE FROM ANY~~
17 ~~FACILITY THAT DOES NOT HAVE A VALID CERTIFICATION OR ACCREDITATION AS~~
18 ~~REQUIRED BY SUBSECTION B, PARAGRAPH 3 OF THIS SECTION. ANY CONTRACT OR~~
19 ~~AGREEMENT BY WHICH A PHYSICIAN OBTAINS STEM CELLS OR BIRTH TISSUE FOR~~
20 ~~THERAPIES FROM A CERTIFIED OR ACCREDITED FACILITY MUST INCLUDE THE~~
21 ~~FOLLOWING INFORMATION:~~
22 ~~1. THE NAME AND ADDRESS OF THE FACILITY.~~
23 ~~2. THE FACILITY'S CERTIFYING OR ACCREDITING ORGANIZATION.~~
24 ~~3. THE TYPE AND SCOPE OF CERTIFICATION OR ACCREDITATION.~~
25 ~~4. THE EFFECTIVE DATE AND EXPIRATION DATE OF THE CERTIFICATION OR~~
26 ~~ACCREDITATION.~~
27 ~~5. ANY LIMITS OR CONDITIONS IMPOSED BY THE CERTIFYING OR~~
28 ~~ACCREDITING ORGANIZATION ON THE FACILITY.~~
29 ~~6. A STATEMENT INDICATING, WITH SPECIFICITY, HOW, WHEN AND WHERE~~
30 ~~THE STEM CELLS OR BIRTH TISSUE WAS OBTAINED, SUCH AS ADULT STEM CELLS,~~
31 ~~UMBILICAL CORD BLOOD OR AMNIOTIC FLUID.~~
32 ~~D. ANY FACILITY THAT PROVIDES STEM CELLS OR BIRTH TISSUE TO A~~
33 ~~PHYSICIAN FOR STEM CELL THERAPY OR BIRTH TISSUE THERAPY MUST NOTIFY THE~~
34 ~~PHYSICIAN TO WHOM THE FACILITY IS PROVIDING STEM CELLS OR BIRTH TISSUE~~
35 ~~WITHIN THIRTY DAYS AFTER ANY CHANGE IN CERTIFICATION OR ACCREDITATION~~
36 ~~STATUS, INCLUDING SUSPENSION, REVOCATION, RENEWAL OR EXPIRATION.~~
37 ~~E. A PHYSICIAN SHALL ENSURE THAT ALL PRODUCTS USED IN STEM CELL~~
38 ~~THERAPY OR BIRTH TISSUE THERAPY ARE OBTAINED FROM A FACILITY THAT COMPLIES~~
39 ~~WITH CURRENT GOOD MANUFACTURING PRACTICES IN ACCORDANCE WITH THE FEDERAL~~
40 ~~FOOD, DRUG, AND COSMETIC ACT (52 STAT. 1040; 21 UNITED STATES CODE SECTION~~
41 ~~301) AND 21 CODE OF FEDERAL REGULATIONS PART 1271.~~
42 ~~F. ANY PHYSICIAN ADVERTISING STEM CELL THERAPIES OR BIRTH TISSUE~~
43 ~~THERAPIES MUST INCLUDE THE FOLLOWING DISCLOSURE IN ANY FORM OF~~
44 ~~ADVERTISEMENT, IN A TYPE SIZE OF AT LEAST THE LARGEST TYPE USED ELSEWHERE~~
45 ~~IN THE ADVERTISEMENT.~~

1 ~~THIS NOTICE IS REQUIRED BY ARIZONA LAW. THIS PHYSICIAN OFFERS~~
2 ~~ONE OR MORE STEM CELL THERAPIES OR BIRTH TISSUE THERAPIES THAT~~
3 ~~ARE NOT APPROVED BY THE UNITED STATES FOOD AND DRUG~~
4 ~~ADMINISTRATION. YOU ARE ENCOURAGED TO CONSULT WITH YOUR~~
5 ~~PRIMARY CARE PROVIDER BEFORE UNDERGOING ANY STEM CELL THERAPY~~
6 ~~OR BIRTH TISSUE THERAPY.~~
7 ~~G. BEFORE PERFORMING ANY STEM CELL THERAPY OR BIRTH TISSUE THERAPY,~~
8 ~~THE PHYSICIAN SHALL OBTAIN A SIGNED INFORMED CONSENT FORM FROM THE PATIENT~~
9 ~~OR, IF THE PATIENT IS NOT LEGALLY COMPETENT, FROM THE PATIENT'S AUTHORIZED~~
10 ~~REPRESENTATIVE THAT CLEARLY STATES:~~
11 ~~1. THE NATURE AND CHARACTER OF THE PROPOSED TREATMENT.~~
12 ~~2. THAT THE TREATMENT HAS NOT BEEN APPROVED BY THE UNITED STATES~~
13 ~~FOOD AND DRUG ADMINISTRATION.~~
14 ~~3. THE ANTICIPATED RESULTS OF THE PROPOSED TREATMENT.~~
15 ~~4. THE RECOGNIZED SERIOUS POSSIBLE RISKS AND COMPLICATIONS OF THE~~
16 ~~TREATMENT, THE ANTICIPATED BENEFITS OF THE TREATMENT AND ANY ALTERNATIVES~~
17 ~~TO THE TREATMENT, INCLUDING THE OPTION OF NOT UNDERGOING TREATMENT.~~
18 ~~5. THAT THE PATIENT IS ENCOURAGED TO CONSULT WITH THE PATIENT'S~~
19 ~~PRIMARY CARE PROVIDER BEFORE PROCEEDING WITH THE TREATMENT.~~
20 ~~H. THIS SECTION DOES NOT APPLY TO A PHYSICIAN WHO EITHER:~~
21 ~~1. HAS OBTAINED APPROVAL FOR AN INVESTIGATIONAL NEW DRUG OR DEVICE~~
22 ~~FROM THE UNITED STATES FOOD AND DRUG ADMINISTRATION FOR THE USE OF HUMAN~~
23 ~~CELLS, TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS.~~
24 ~~2. PERFORMS STEM CELL THERAPY OR BIRTH TISSUE THERAPY TREATMENTS~~
25 ~~UNDER AN EMPLOYMENT OR OTHER CONTRACT ON BEHALF OF AN INSTITUTION THAT IS~~
26 ~~CERTIFIED OR ACCREDITED BY ONE OF THE FOLLOWING:~~
27 ~~(a) THE FOUNDATION FOR THE ACCREDITATION OF CELLULAR THERAPY.~~
28 ~~(b) THE BLOOD AND MARROW TRANSPLANT CLINICAL TRIALS NETWORK.~~
29 ~~(c) THE ASSOCIATION FOR THE ADVANCEMENT OF BLOOD AND BIOTHERAPIES.~~
30 ~~I. ANY INDIVIDUAL WHO RECEIVES A STEM CELL THERAPY OR BIRTH TISSUE~~
31 ~~THERAPY TREATMENT THAT VIOLATES THIS SECTION MAY BRING A CIVIL ACTION TO~~
32 ~~RECOVER STATUTORY DAMAGES IN AN AMOUNT OF \$10,000 PER VIOLATION, PLUS~~
33 ~~ATTORNEY FEES AND COSTS.~~
34 ~~J. A PHYSICIAN WHO WILFULLY PERFORMS OR ACTIVELY PARTICIPATES IN~~
35 ~~THE FOLLOWING ACTS IS GUILTY OF A CLASS 5 FELONY AND IS SUBJECT TO~~
36 ~~DISCIPLINARY ACTION UNDER THIS CHAPTER:~~
37 ~~1. TREATMENT OR RESEARCH USING HUMAN CELLS OR TISSUES DERIVED FROM~~
38 ~~A FETUS OR AN EMBRYO AFTER AN ELECTIVE ABORTION.~~
39 ~~2. THE DEVELOPMENT, DEPLOYMENT, SALE, MANUFACTURE OR DISTRIBUTION~~
40 ~~OF COMPUTER PRODUCTS CREATED USING HUMAN CELLS, TISSUES OR CELLULAR OR~~
41 ~~TISSUE-BASED PRODUCTS, INCLUDING SYNTHETIC COGNITION SYSTEMS.~~
42 ~~K. THE BOARD MAY ADOPT RULES NECESSARY TO IMPLEMENT THIS SECTION~~
43 ~~PURSUANT TO TITLE 41, CHAPTER 6.~~
44 ~~L. FOR THE PURPOSES OF THIS SECTION:~~
45 ~~1. "BIRTH TISSUE THERAPY":~~

1 ~~(a) MEANS A TREATMENT INVOLVING THE USE OF AFTERBIRTH PLACENTAL~~
2 ~~PERINATAL MATERIAL, INCLUDING AMNIOTIC FLUID, THAT DOES NOT RELY ON~~
3 ~~CELLULAR VIABILITY FOR THE EFFICACY OF THE PRODUCT BUT RELIES ON THE~~
4 ~~PHYSICAL STRUCTURES AND THE SIGNALING FACTOR OF THE PROTEINS AND~~
5 ~~EXTRACELLULAR MATRIX ELEMENTS IT CONTAINS.~~

6 ~~(b) DOES NOT INCLUDE TREATMENT OR RESEARCH USING HUMAN TISSUES OR~~
7 ~~FLUIDS THAT WERE DERIVED FROM A FETUS OR EMBRYO AFTER AN ELECTIVE ABORTION~~
8 ~~OR PREGNANCY OF LESS THAN THIRTY-SIX WEEKS' GESTATION.~~

9 ~~2. "HUMAN CELLS, TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS":~~

10 ~~(a) MEANS ARTICLES CONTAINING OR CONSISTING OF HUMAN CELLS OR~~
11 ~~TISSUES THAT ARE INTENDED FOR IMPLANTATION, TRANSPLANTATION, INFUSION OR~~
12 ~~TRANSFER INTO A HUMAN RECIPIENT.~~

13 ~~(b) DOES NOT INCLUDE:~~

14 ~~(i) VASCULARIZED HUMAN ORGANS FOR TRANSPLANTATION.~~

15 ~~(ii) WHOLE BLOOD OR BLOOD COMPONENTS OR BLOOD DERIVATIVE PRODUCTS.~~

16 ~~(iii) SECRETED OR EXTRACTED HUMAN PRODUCTS, SUCH AS MILK, COLLAGEN~~
17 ~~AND CELL FACTORS, OTHER THAN SEMEN AND AMNIOTIC FLUID.~~

18 ~~(iv) MINIMALLY MANIPULATED BONE MARROW THAT IS FOR HOMOLOGOUS USE~~
19 ~~AND THAT IS NOT COMBINED WITH ANOTHER ARTICLE OTHER THAN WATER,~~
20 ~~CRYSTALLOIDS OR A STERILIZING, PRESERVING OR STORAGE AGENT, IF THE~~
21 ~~ADDITION OF THE AGENT DOES NOT RAISE NEW CLINICAL SAFETY CONCERNS WITH~~
22 ~~RESPECT TO THE BONE MARROW.~~

23 ~~(v) ANCILLARY PRODUCTS USED IN THE MANUFACTURE OF HUMAN CELLS,~~
24 ~~TISSUES OR CELLULAR OR TISSUE-BASED PRODUCTS.~~

25 ~~(vi) CELLS, TISSUES AND ORGANS DERIVED FROM ANIMALS OTHER THAN~~
26 ~~HUMANS.~~

27 ~~(vii) IN VITRO DIAGNOSTIC PRODUCTS.~~

28 ~~(viii) BLOOD VESSELS RECOVERED WITH AN ORGAN THAT ARE INTENDED FOR~~
29 ~~USE IN ORGAN TRANSPLANTATION AND LABELED "FOR USE IN ORGAN TRANSPLANTATION~~
30 ~~ONLY".~~

31 ~~3. "MINIMALLY MANIPULATED" MEANS:~~

32 ~~(a) FOR STRUCTURAL TISSUE, PROCESSING THAT DOES NOT ALTER THE~~
33 ~~ORIGINAL RELEVANT CHARACTERISTICS OF THE TISSUE RELATING TO THE TISSUE'S~~
34 ~~UTILITY FOR RECONSTRUCTION, REPAIR OR REPLACEMENT.~~

35 ~~(b) FOR CELLS OR NONSTRUCTURAL TISSUES, PROCESSING THAT DOES NOT~~
36 ~~ALTER THE RELEVANT BIOLOGICAL CHARACTERISTICS OF THE CELLS OR TISSUES.~~

37 ~~4. "STEM CELL THERAPY":~~

38 ~~(a) MEANS A TREATMENT THAT INVOLVES THE USE OF AFTERBIRTH PLACENTAL~~
39 ~~PERINATAL STEM CELLS OR HUMAN CELLS, TISSUES OR CELLULAR OR TISSUE-BASED~~
40 ~~PRODUCTS AND THAT COMPLIES WITH THE REGULATORY REQUIREMENTS PROVIDED IN~~
41 ~~THIS SECTION.~~

42 ~~(b) DOES NOT INCLUDE TREATMENT OR RESEARCH USING HUMAN CELLS OR~~
43 ~~TISSUES THAT WERE DERIVED FROM A FETUS OR AN EMBRYO AFTER AN ELECTIVE~~
44 ~~ABORTION.>>~~

45 <<Sec. 2. Legislative intent

1 [The purpose of this act is to authorize qualified providers in this
2 state to administer specific stem cell and regenerative therapies under
3 clearly defined safety conditions, to ensure comprehensive informed
4 consent and advertising transparency and to protect patient safety by
5 ensuring compliance with biological sourcing standards.]>>

6 Sec. 3. Short title

7 This act may be cited as the "Arizona Stem Cell [and Regenerative]
8 Therapy Act."

9 Enroll and engross to conform

10 Amend title to conform

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